



ARIZONA HOUSE OF REPRESENTATIVES FLOOR AMENDMENT EXPLANATION

57th Legislature, 2nd Regular Session

Majority Research Staff

HB 2032: statewide assessment; testing window; revisions

FINK FLOOR AMENDMENT

1. Reinserts language that directs the Arizona Department of Education (ADE) or the State Board of Education (SBE) to execute a testing window for the statewide assessment that is not longer than four consecutive school weeks.
2. Prohibits the testing window executed by ADE or SBE for the 3rd through 8th grade statewide assessment from beginning before the fourth week in April, unless the assessment is an alternate assessment administered due to a student's Section 504 plan or individualized education program.
3. Sets May 26 as the date by which SBE must require the statewide assessment contractor to distribute test scores and data to local education agencies (LEAs) for all portions of the statewide assessment.
4. Authorizes the contractor for the statewide assessment to provide unofficial test scores and data from the statewide assessment to LEAs to comply with the test scores and data deadline.
5. As session law, instructs SBE to enter into contracts with contractors to purchase statewide assessment tests that meet the prescribed requirements.

FINK FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES AMENDMENTS TO H.B. 2032
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.
[Green underlining in brackets] indicates text added to new session law or text restoring existing law.
[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.
[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.
<<Green carets>> indicate a section added to the bill.
<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 15-701, Arizona Revised Statutes, is amended to
3 read:

4 15-701. Common schools; promotions; requirements;
5 certificate; supervision of eighth grades by
6 superintendent of high school district; high school
7 admissions; academic credit; definition

8 A. The state board of education shall:

9 1. Prescribe a minimum course of study incorporating the academic
10 standards adopted by the state board of education to be taught in the
11 common schools.

12 2. Prescribe competency requirements for the promotion of pupils
13 from the eighth grade and competency requirements for the promotion of
14 pupils from the third grade that incorporate the academic standards in at
15 least the areas of reading, writing, mathematics, science and social
16 studies. The competency requirements for the promotion of pupils from the
17 third grade shall include the following:

18 (a) A requirement that a pupil not be promoted from the third grade
19 if the pupil ~~obtains a score on the reading portion of the statewide~~
20 ~~assessment that~~ does not demonstrate sufficient reading skills as
21 established by the state board. A pupil may not be retained ~~pursuant to~~
22 ~~this subdivision if data regarding the pupil's performance on the~~
23 ~~statewide assessment is not available before the end of the current~~
24 ~~academic year and may not be retained~~ more than once. A pupil who is not
25 retained ~~due to the unavailability of test data~~ AND WHO OBTAINS A SCORE ON
26 THE READING PORTION OF THE STATEWIDE ASSESSMENT THAT DOES NOT DEMONSTRATE
27 SUFFICIENT READING SKILLS must receive evidence-based intervention and

1 remedial strategies pursuant to subdivision (c) of this paragraph ~~if the~~
2 ~~third grade assessment data subsequently does not demonstrate sufficient~~
3 ~~reading skills.~~

4 (b) A mechanism to allow a school district governing board or
5 charter school governing body to promote from the third grade a pupil who
6 does not demonstrate sufficient reading skills pursuant to subdivision (a)
7 of this paragraph if the pupil:

8 (i) Is an English learner or a limited English proficient student
9 as defined in section 15-751 and has had fewer than three years of English
10 language instruction.

11 (ii) Is in the process of a special education referral or
12 evaluation for placement in special education, has been diagnosed as
13 having a significant reading impairment, including dyslexia, or is a child
14 with a disability as defined in section 15-761 if the pupil's
15 individualized education program team and the pupil's parent or guardian
16 agree that promotion is appropriate based on the pupil's individualized
17 education program.

18 (iii) Has demonstrated or subsequently demonstrates sufficient
19 reading skills or adequate progress toward sufficient reading skills of
20 the third grade reading standards as evidenced through a collection of
21 reading assessments approved by the state board of education, which
22 includes an alternative standardized reading assessment approved by the
23 state board.

24 (iv) Receives intervention and remedial services during the summer
25 or a subsequent school year pursuant to subdivision (c) of this paragraph
26 and demonstrates sufficient progress based on guidelines issued pursuant
27 to subsection B, paragraph 7 of this section.

28 (c) Evidence-based intervention and remedial strategies developed
29 by the state board of education for pupils who are not promoted from the
30 third grade. A school district governing board or charter school
31 governing body shall offer more than one of the intervention and remedial
32 strategies developed by the state board of education. The parent or
33 guardian of a pupil who is not promoted from the third grade and the
34 pupil's teacher and principal may choose the most appropriate intervention
35 and remedial strategies that will be provided to that pupil. The
36 intervention and remedial strategies developed by the state board of
37 education shall include:

38 (i) A requirement that the pupil be assigned for evidence-based
39 reading instruction by a different teacher who was designated in that
40 teacher's most recent performance evaluation in one of the top two
41 performance classifications.

1 (ii) Summer school reading instruction.

2 (iii) In the next academic year, intensive reading instruction that
3 occurs before, during or after the regular school day, or any combination
4 of before, during and after the regular school day.

5 (iv) Small group and teacher-led evidence-based reading
6 instruction, which may include computer-based or online reading
7 instruction.

8 (d) A requirement that a school district governing board or charter
9 school governing body that promotes a pupil pursuant to subdivision (b) of
10 this paragraph provide annual reporting to the department of education on
11 or before October 1 that includes information on the total number of
12 pupils subject to the retention provisions of subdivision (a) of this
13 paragraph, the total number of students promoted pursuant to subdivision
14 (b) of this paragraph, the total number of pupils retained in grade three
15 and the interventions administered pursuant to subdivision (c) of this
16 paragraph.

17 3. Provide for universal screening of pupils in preschool programs,
18 kindergarten programs and grades one through three that is designed to
19 identify pupils who have reading deficiencies pursuant to section 15-704.

20 4. Develop evidence-based intervention and remedial strategies
21 pursuant to paragraph 2, subdivision (c) of this subsection for pupils in
22 kindergarten programs and grades one through three who are identified as
23 having reading deficiencies pursuant to section 15-704.

24 5. Distribute guidelines for the school districts to follow in
25 prescribing criteria for the promotion of pupils from grade to grade in
26 the common schools. These guidelines shall include recommended procedures
27 for ensuring that the cultural background of a pupil is taken into
28 consideration when criteria for promotion are being applied.

29 B. School districts and charter schools shall provide annual
30 written notification to parents of pupils in kindergarten programs and
31 first, second and third grades that a pupil who does not demonstrate
32 sufficient reading skills pursuant to subsection A of this section will
33 not be promoted from the third grade. School districts and charter
34 schools shall identify each pupil who is at risk of reading below grade
35 level in kindergarten and grades one, two and three and shall provide to
36 the parent of that pupil a specific written notification of the reading
37 deficiency within three weeks after identifying the reading deficiency.
38 The notification shall include the following information:

39 1. A description of the pupil's specific individual needs.

40 2. A description of the current reading services provided to the
41 pupil.

42 3. A description of the available supplemental instructional
43 services and supporting programs that are designed to remediate reading
44 deficiencies. Each school district or charter school shall offer more
45 than one evidence-based intervention strategy and more than one remedial
46 strategy developed by the state board of education for pupils with reading
47 deficiencies. The notification shall list the intervention and remedial

1 strategies offered and shall instruct the parent to choose, in
2 consultation with the pupil's teacher, the most appropriate strategies to
3 be provided and implemented for that child.

4 4. Parental strategies to assist the pupil to attain reading
5 proficiency.

6 5. The frequency with which the school district or charter school
7 will provide timely updates and information to the parent on the pupil's
8 progress toward reading proficiency.

9 6. A statement that the pupil will not be promoted from the third
10 grade if the pupil does not demonstrate sufficient reading skills pursuant
11 to subsection A, paragraph 2, subdivision (a) of this section, unless the
12 pupil is exempt from mandatory retention in grade three or the pupil
13 qualifies for an exemption pursuant to subsection A, paragraph 2,
14 subdivision (b) of this section.

15 7. A description of the school district or charter school policies
16 on midyear promotion to a higher grade.

17 C. Pursuant to the guidelines that the state board of education
18 distributes, the governing board of a school district shall:

19 1. Prescribe curricula that include the academic standards in the
20 required subject areas pursuant to subsection A, paragraph 1 of this
21 section.

22 2. Prescribe criteria for the promotion of pupils from grade to
23 grade in the common schools in the school district. These criteria shall
24 include accomplishment of the academic standards in at least reading,
25 writing, mathematics, science and social studies, as determined by
26 district assessment. Other criteria may include additional measures of
27 academic achievement and attendance.

28 D. The governing board may prescribe the course of study and
29 competency requirements for promotion that are in addition to or higher
30 than the course of study and competency requirements the state board
31 prescribes.

32 E. A teacher shall determine whether to promote or retain a pupil
33 in a grade in a common school on the basis of the prescribed criteria.
34 The governing board, if it reviews the decision of a teacher to promote or
35 retain a pupil in a grade in a common school as provided in section
36 15-342, paragraph 11, shall base its decision on the prescribed criteria.

37 F. A governing board may provide and issue certificates of
38 promotion to pupils whom it promotes from the eighth grade of a common
39 school. Such certificates shall be signed by the principal or
40 superintendent of schools. If there is no principal or superintendent of
41 schools, the certificates shall be signed by an eighth grade teacher. The
42 certificates shall admit the holders to any high school in this state.

43 G. Within any high school district or union high school district,
44 the superintendent of the high school district shall supervise the work of
45 the eighth grade of all schools that do not employ a superintendent or
46 principal.

1 H. A school district shall not deny a pupil who is between the ages
2 of sixteen and twenty-one years admission to a high school because the
3 pupil does not hold an eighth grade certificate. Governing boards shall
4 establish procedures for determining the admissibility of pupils who are
5 under sixteen years of age and who do not hold eighth grade certificates.

6 I. The state board of education shall adopt rules to allow common
7 school pupils who can demonstrate competency in a particular academic
8 course or subject to obtain academic credit for the course or subject
9 without enrolling in the course or subject.

10 J. A school district may conduct a ceremony to honor pupils who
11 have been promoted from the eighth grade.

12 K. For the purposes of this section, "dyslexia" means a condition
13 that:

14 1. Is neurological in origin.

15 2. Is characterized by difficulties with accurate or fluent word
16 recognition and by poor spelling and decoding abilities, including
17 difficulties that typically result from a deficit in the phonological
18 component of language that is often unexpected in relation to other
19 cognitive abilities and to the provision of effective classroom
20 instruction.

21 3. May include secondary consequences such as problems with reading
22 comprehension and reduced reading experience that may impede the growth of
23 vocabulary and background knowledge.

24 Sec. 2. Section 15-741, Arizona Revised Statutes, is amended to
25 read:

26 15-741. Assessment of pupils; definition

27 A. The state board of education shall:

28 1. Adopt rules for the purposes of this article pursuant to title
29 41, chapter 6.

30 2. Adopt and implement a statewide assessment to measure pupil
31 achievement of the state board-adopted academic standards in reading,
32 writing and mathematics in at least four grades designated by the state
33 board. The state board shall determine the manner of implementation. The
34 state board may administer assessments of the academic standards in social
35 studies and science, except that a pupil shall not be required to meet or
36 exceed the social studies or science standards measured by the statewide
37 assessment.

38 3. Ensure that the tests prescribed in this section are uniform
39 throughout this state.

40 4. Ensure that the tests prescribed in this section are able to be
41 scored in an objective manner and are not intended to advocate any
42 sectarian, partisan or denominational viewpoint.

1 5. Ensure that the tests prescribed in this article collect only
2 types of pupil nontest data that are approved by the state board at a
3 public meeting and published on the website of the state board pursuant to
4 paragraph 7 of this subsection.

5 6. Include within its budget all costs pertaining to the tests
6 prescribed in this article. If sufficient monies are appropriated, the
7 state board may provide achievement test services to school districts that
8 request assistance in testing pupils in grades additional to those
9 required by this section.

10 7. Survey teachers, principals and superintendents on
11 achievement-related nontest indicators, including information on
12 graduation rates by ethnicity and dropout rates by ethnicity for each
13 grade level. Before the survey, the state board shall approve at a public
14 meeting the nontest indicators on which data will be collected and shall
15 post in a prominent position on the home page of the state board's website
16 a link to the nontest indicators entitled "What nontest data does the
17 state of Arizona collect about Arizona pupils?". The linked webpage shall
18 state the types of data collected, the reasons for the collection of the
19 data and the entities with which the data is shared. In conducting the
20 survey and collecting data, the state board shall not violate the
21 provisions of the family educational rights and privacy act (P.L. 93-380),
22 as amended, or disclose personally identifiable information.

23 8. Establish a fair and consistent method and standard by which
24 test scores from schools in a district may be evaluated taking into
25 consideration demographic data. The state board shall establish
26 intervention strategies to assist schools with scores below the acceptable
27 standard. The state board shall annually review district and school
28 scores and shall offer assistance to school districts in analyzing data
29 and implementing intervention strategies. The state board shall use the
30 adopted test and methods of data evaluation for a period of at least ten
31 years.

32 9. Participate in other assessments that provide national
33 comparisons as needed.

34 10. Require in the contract for the statewide assessment pursuant
35 to this section that test ~~scores and assessment data from the third grade~~
36 ~~reading portion of the statewide assessment adopted pursuant to this~~
37 ~~section be received by local education agencies on or before May 15 of~~
38 ~~each academic year and that the~~ scores and ~~assessment~~ data from ~~all other~~
39 ~~portions of~~ the statewide assessment adopted pursuant to this section be
40 received by local education agencies on or before ~~May 25~~ [JULY 1] [MAY 26]
41 of each academic year. The state board shall impose penalties on the
42 contractor for scores received after ~~these dates~~ [JULY 1] [MAY 26, UNLESS
43 THE CONTRACTOR PROVIDES UNOFFICIAL TEST SCORES TO LOCAL EDUCATION AGENCIES
44 ON OR BEFORE MAY 26]. ~~If the state board alters the statewide assessment~~
45 ~~testing window for any reason, the state board may adjust the dates by~~
46 ~~which local education agencies are required to receive the scores and~~
47 ~~assessment data proportionately. If the state board adjusts the dates by~~

~~1 which local education agencies are required to receive the scores and~~
~~2 assessment data, the state board may not impose penalties on the~~
~~3 contractor unless the scores and assessment data are received after the~~
~~4 adjusted dates. [THE CONTRACTOR MAY PROVIDE UNOFFICIAL TEST SCORES AND~~
~~5 DATA FROM THE STATEWIDE ASSESSMENT ADOPTED PURSUANT TO THIS SECTION TO~~
~~6 LOCAL EDUCATION AGENCIES TO COMPLY WITH THE DEADLINES PRESCRIBED BY THIS~~
~~7 PARAGRAPH.]~~

8 B. The achievement tests adopted by the state board as provided in
9 subsection A of this section shall be given at least annually. Nontest
10 indicator data and other information shall be collected at the same time
11 as the collection of achievement test data.

12 C. Local school district governing boards shall:

13 1. Administer the tests prescribed in subsection A of this section.

14 2. Survey teachers, principals and superintendents on
15 achievement-related nontest indicator data as required by the state board,
16 including information related to district graduation and dropout rates.
17 In conducting the survey and collecting data, the governing board shall
18 not violate the provisions of the family educational rights and privacy
19 act (P.L. 93-380), as amended, or disclose personally identifiable
20 information.

21 D. Any additional assessments for high school pupils that are
22 adopted by the state board after November 24, 2009 shall be designed to
23 measure college and career readiness of pupils.

24 E. If a high school pupil who is enrolled in a school district or
25 charter school participates in a nationally recognized assessment that is
26 both adopted by the state board of education pursuant to subsection A of
27 this section and administered by a person other than the school district
28 or charter school, the pupil or pupil's parent or guardian may submit the
29 pupil's official score report for the assessment to the school district or
30 charter school. On receipt of an official score report pursuant to this
31 subsection, the school district or charter school shall do all of the
32 following:

33 1. Record the score in the pupil's file.

34 2. Report the score to the state board of education and the
35 department of education.

36 3. If the pupil or pupil's parent or guardian submits an official
37 score report pursuant to this subsection to the school district or charter
38 school before the date on which the school administers the tests
39 prescribed in subsection A of this section, allow the pupil to opt out of
40 participation in the assessment that is administered by the school
41 district or charter school. If a pupil opts out of an assessment pursuant
42 to this paragraph, the school district or charter school shall use the
43 data from the pupil's official score report for the pupil's achievement
44 test data for the purposes of this section. This paragraph does not
45 require a school district or charter school to allow a pupil to opt out of
46 the collection of nontest indicator data or other information that is
47 collected about pupils who participate in the assessment that is

1 administered by the school district or charter school pursuant to this
2 section.

3 F. A test for penmanship shall not be required pursuant to this
4 article.

5 G. If a local education agency requests a raw data file of
6 assessment data for the pupils tested at the local education agency, the
7 department of education shall fulfill the request in a format that is
8 usable for assessment diagnostics within thirty days after the request.
9 The local education agency shall follow all applicable student data
10 privacy laws and may not publicly disclose individual student achievement
11 results.

12 H. A school district or charter school may administer the statewide
13 assessment in the form of a written test ~~if~~ FOR any of the following
14 ~~applies~~ REASONS:

15 1. A written test is required pursuant to an individualized
16 education program or a section 504 plan as defined in section 15-731.

17 2. To accommodate special circumstances.

18 3. For religious purposes.

19 4. On request by a pupil's parent or guardian.

20 I. For the purposes of this section, "nationally recognized" has
21 the same meaning prescribed in section 15-741.02.

22 Sec. 3. Section 15-742, Arizona Revised Statutes, is amended to
23 read:

24 15-742. Contract to purchase tests; bond; score distribution
25 deadline; action for damages

26 A. The state board of education shall enter into contracts with
27 contractors ~~for the~~ TO purchase ~~of~~ the tests adopted by the state board
28 pursuant to sections 15-203 and 15-741. Notwithstanding section 41-2546,
29 the state board may enter into contracts ~~for the~~ TO purchase ~~of~~ nationally
30 standardized norm-referenced tests pursuant to this section for a duration
31 of up to ten years. The contracts may also provide for the distribution
32 of the tests to the school districts and the scoring of the tests.

33 B. Contractors shall give a cash or corporate surety bond payable
34 to this state and approved by the state board indemnifying the state in
35 the test purchases in an amount ~~not less than five hundred nor~~ OF AT LEAST
36 \$500 AND NOT more than ~~ten thousand dollars~~ \$10,000 as may be determined
37 by the state board. The contractor shall faithfully comply with the
38 conditions of the contract and shall furnish to the state the tests as
39 provided in the contract at prices not exceeding the lowest prices then
40 granted to any buyer. If there is a decrease in the prices given to a
41 person purchasing such tests from the contractor, ~~the~~ THIS state shall
42 have the benefit of the decrease in price.

43 C. The contractor shall file with the state board a sworn statement
44 stating the lowest prices for which the contractor's series of tests is
45 sold anywhere in the United States.

1 D. Any contract entered into pursuant to this section shall require
2 that ~~THE CONTRACTOR DISTRIBUTE~~ test scores ~~and assessment data from the~~
3 ~~third grade reading portion of the statewide assessment adopted pursuant~~
4 ~~to section 15-741 be received by local education agencies on or before May~~
5 ~~15 of each academic year and the scores and assessment data from all other~~
6 ~~portions of the statewide assessment adopted pursuant to section 15-741 be~~
7 ~~received by~~ TO local education agencies on or before ~~May 25~~ [JULY 1] [MAY
8 26] of each academic year. [THE CONTRACTOR MAY DISTRIBUTE UNOFFICIAL TEST
9 SCORES AND DATA FROM THE STATEWIDE ASSESSMENT TO LOCAL EDUCATION AGENCIES
10 TO COMPLY WITH THE DEADLINE PRESCRIBED BY THIS SUBSECTION.]

11 E. If a contractor violates a condition of the contract, the
12 attorney general, on request of the state board of education, shall
13 institute an action for damages on the bond of the contractor.

14 Sec. 4. Section 15-743, Arizona Revised Statutes, is amended to
15 read:

16 15-743. Test results; annual reports; five-year cumulative
17 summary; distribution of scores to schools and
18 parents; testing window

19 A. The state board of education shall provide annual reports for
20 ~~every~~ EACH school and school district and ~~the~~ THIS state as a whole. The
21 state board shall annually submit these reports to school districts, the
22 legislature and the county school superintendents and shall make them
23 available to the public. The state board shall publish and distribute the
24 reports by September 1 and shall ~~also~~ provide a cumulative summary of the
25 reports every five years. The annual reports and cumulative summary
26 results shall include:

27 1. Average and range scores on the statewide assessment adopted
28 pursuant to section 15-741.

29 2. Standardized test scores by subject area according to
30 percentiles and stanines for the school, school district, county, state
31 and nation.

32 3. Achievement-related nontest indicator data collected in the
33 survey of teachers, principals and superintendents as required by section
34 15-741, including information related to dropout rates by ethnicity for
35 each grade level and graduation rates and postsecondary employment and
36 education by ethnicity. In reporting such data, the state board shall not
37 violate the provisions of the family educational rights and privacy act
38 (P.L. 93-380), as amended, or disclose personally identifiable
39 information.

40 4. The numbers of pupils who have completed the academic standards
41 at grades three, eight and twelve.

42 B. Test results on individual pupils shall not be made available to
43 the public by name or individually identifiable reference.

44 C. The state board shall provide a copy of the results from the
45 tests prescribed in section 15-741, subsection A for each school district
46 to that school district. Results may not be released to the public until
47 ten days after the reports are provided to each school district.

1 D. The state board shall provide each school district **THAT IS**
2 participating in the testing program with a copy of each pupil's
3 standardized norm-referenced test scores in reading, language arts and
4 mathematics, and the associated grade equivalents, percentiles and
5 stanines for the school, school district, county, state and nation, a
6 report of pupil progress on an ongoing and annual basis, showing the
7 trends in gain or loss in pupil achievement over time in reading, language
8 arts and mathematics for all years in which pupils are enrolled in the
9 school district for an entire school year and for which this information
10 is available and a report of the pupil progress for pupils not enrolled in
11 a district for an entire school year. The state board shall ~~also~~ provide
12 each school district with each pupil's statewide assessment scores and the
13 statewide assessment scores for the school, school district, county and
14 state.

15 E. The school district shall provide a parent or guardian of each
16 pupil participating in the standardized norm-referenced testing part of
17 the program with a copy of the pupil's scores in reading, language arts
18 and mathematics, and the percentiles and stanines. The school district
19 shall provide a parent or guardian of each pupil with a copy of the
20 pupil's scores on the statewide assessment and the associated scores for
21 the school, school district, county and state. The school district shall
22 make available to the public through the reports those scores for each
23 school in the school district and for the school district, county, state
24 and nation.

25 F. ~~[Any] [THE DEPARTMENT OF EDUCATION OR THE STATE BOARD OF~~
26 ~~EDUCATION SHALL ESTABLISH AND EXECUTE A]~~ testing window ~~[established and~~
27 ~~executed by the department of education or the state board for the~~
28 ~~administration of] [TO ADMINISTER]~~ the statewide assessment adopted
29 pursuant to section 15-741 ~~[may not be longer than four consecutive school~~
30 ~~weeks]~~ ~~shall ensure that local education agencies receive test scores and~~
31 ~~assessment data from the third grade reading portion of the statewide~~
32 ~~assessment on or before May 15 of each academic year and that the scores~~
33 ~~and assessment data from all other portions of the statewide assessment~~
34 ~~adopted pursuant to section 15-741 are received by local education~~
35 ~~agencies on or before May 25 of [THAT ALLOWS EACH LOCAL EDUCATION AGENCY~~
36 ~~TO ADMINISTER THE STATEWIDE ASSESSMENT DURING THE LAST TWO SCHOOL WEEKS OF~~
37 ~~THE LOCAL EDUCATION AGENCY'S SCHOOL CALENDAR FOR each academic year].~~
38 ~~[THE TESTING WINDOW ESTABLISHED PURSUANT TO THIS SUBSECTION FOR AN~~
39 ~~ASSESSMENT THAT IS ADMINISTERED TO STUDENTS IN ANY OF GRADES THREE THROUGH~~
40 ~~EIGHT MAY NOT BEGIN BEFORE THE FOURTH WEEK OF APRIL DURING ANY SCHOOL YEAR~~
41 ~~UNLESS THE ASSESSMENT IS AN ALTERNATE ASSESSMENT THAT IS ADMINISTERED~~
42 ~~PURSUANT TO A STUDENT'S SECTION 504 PLAN OR INDIVIDUALIZED EDUCATION~~
43 ~~PROGRAM AS DEFINED IN SECTION 15-731.]~~ The department of education or the
44 state board may not prohibit the superintendent or the staff of a local
45 education agency from sharing statewide assessment data with the local
46 education agency's district governing board or governing body or otherwise
47 impede the sharing of statewide assessment data.

1 ~~G. Notwithstanding subsection F of this section and sections 15-741~~
2 ~~and 15-742, the department of education, subject to review and approval by~~
3 ~~the state board, may adjust the testing window for the statewide~~
4 ~~assessment adopted pursuant to section 15-741 in academic years that the~~
5 ~~state board is revising current proficiency levels or is establishing new~~
6 ~~proficiency levels for the statewide assessment adopted pursuant to~~
7 ~~section 15-741.~~

8 <<Sec. 5. Implementation
9 [The state board of education shall enter into contracts with
10 contractors to purchase tests pursuant to sections 15-741 and 15-742,
11 Arizona Revised Statutes, as amended by this act.]>>

12 Enroll and engross to conform
13 Amend title to conform

LISA FINK

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